Brazoria County District Court

Cause No. 2024-CV-0030

Ashley Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 25, 2024
Plaintiff's counsel:	Candice Smith, Dunn & Acosta LLP

PARTIES

Plaintiff Ashley Duncan is an individual residing in Texas who was the driver and insured party involved in the motor vehicle collision described below. Defendant is the automobile liability insurer that issued the policy under which Plaintiff seeks coverage and benefits, and which is subject to suit in Texas.

FACTS

On July 24, 2023, Plaintiff was lawfully operating a vehicle on a public roadway in Katy. Another vehicle, operated by an adverse driver whose conduct is at issue in this matter, moved into the lane occupied by Plaintiff while changing lanes without adequate signaling or clearance. The vehicles made contact in a sideswipe collision that forced Plaintiff's car off its path. Plaintiff reported the collision promptly and submitted the claim to Defendant under the applicable coverage. Defendant has not paid the benefits owed under the policy in a timely and reasonable manner.

NEGLIGENCE

The adverse driver owed a duty to exercise ordinary care when changing lanes, including checking blind spots, signaling, and yielding to vehicles already in the lane. That duty was breached. Defendant, as the insurer, owed Plaintiff a duty of good faith and fair dealing in investigating, evaluating, and paying covered claims, and Defendant breached that duty by failing to conduct a reasonable investigation and by delaying or underpaying the claim without a reasonable basis.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion with headaches, dizziness, and cognitive difficulty, requiring medical treatment and time away from work. Plaintiff has incurred medical expenses, lost earnings, and pain and suffering. Plaintiff seeks recovery of policy benefits, statutory damages available under Texas law for unfair claim settlement practices, and attorney's fees. Plaintiff demands judgment in the amount of $120,000.00, together with pre-judgment and post-judgment interest and costs of court.